

SUPERIOR COURT OF CALIFORNIA  
COUNTY OF SAN FRANCISCO  
UNIFIED FAMILY COURT

JOSIE JAMES DIONNE,

Petitioner

VS.

CHELSEA ANNE MCELVEEN,

Respondent

) Case Number: FDI-25-801998

) Hearing Date: June 18, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER: ENTRY OF JUDGMENT OF DISSOLUTION

**TENTATIVE RULING**

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

**A. Procedural History**

- 1) The parties are Petitioner Josie James Dionne and Respondent Chelsea Anne McElveen.
- 2) On 10/6/25, Petitioner filed a Petition for Dissolution indicating the date of marriage is 8/23/24 and date of separation is 5/30/25 for a marriage of 9 months.
- 3) On 1/23/26, Respondent filed a Response and Request for Dissolution indicating the date of marriage is 8/23/24 and date of separation is 5/30/25 for a marriage of 9 months.
- 4) On 5/4/26, Respondent filed a Request for Order seeking entry of Dissolution Judgment based on an attached Marital Settlement Agreement (MSA), which is unsigned.
- 5) On 5/8/26, Petitioner filed an Income and Expense Declaration.
- 6) On 5/11/26, Petitioner filed an Income and Expense Declaration.
- 7) On 6/4/26, Petitioner filed a Responsive Declaration in opposition to Respondent's Request for Order. Petitioner states she agrees to dissolution of marital status but opposes Petitioner's request, asserting Respondent has not provided complete financial disclosures and the parties entered into a separate written agreement regarding debt allocation and is not included in the MSA

Respondent proposed. Petitioner states she requested Respondent disclose business records related to Respondent's business interests by 5/22/26.

- 8) On 6/5/26, Respondent filed a Reply Declaration wherein she objects to the timeliness of service and filing of Petitioner's Responsive Declaration. Respondent asserts she has provided complete financial disclosures, and Petitioner's email requesting disclosure of business records does not constitute formal discovery. Respondent disputes that the validity of the separate written agreement regarding debt allocation. Respondent requests \$7,500 in Family Code section 271 sanctions against Petitioner.
- 9) The Court notes both parties filed a Declaration Regarding Service of Declaration of Disclosure and Income and Expense Declaration (form FL-141): Respondent on 4/6/26 and Petitioner on 5/11/26.

#### **B. Findings and Order**

- 1) Respondent's request for entry of Dissolution Judgment based on an unsigned MSA is DENIED. The Court cannot enter an agreement to which both parties do not agree.
- 2) Respondent's request for \$7,500 in Family Code section 271 sanctions is DENIED.
- 3) To advance in the Court's dissolution process, either party may file an At Issue Memorandum to request a Status Conference at which time a trial date can be requested if it is determined that the parties are ready for trial.
- 4) The Court will prepare the Findings and Order After Hearing.